

STATE OF NEW YORK

1378--A

Cal. No. 1522

2025-2026 Regular Sessions

IN SENATE

January 9, 2025

Introduced by Sens. SERRANO, ADDABBO, COMRIE, HOYLMAN-SIGAL, JACKSON, LIU, MAY, MAYER, ORTT, C. RYAN, SALAZAR, SANDERS, TEDISCO -- read twice and ordered printed, and when printed to be committed to the Committee on Cultural Affairs, Tourism, Parks and Recreation -- reported favorably from said committee and committed to the Committee on Finance -- committee discharged and said bill committed to the Committee on Rules -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the arts and cultural affairs law, in relation to providing financial assistance to museums, zoos, botanical gardens, aquariums and other cultural institutions located in low-income urban, suburban or rural communities, or that provide educational services to students from such communities

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Statement of legislative findings and intent. The legisla-
2 ture finds and declares that the state of New York is home to vast
3 educational resources in museums, historical societies, zoos, botanical
4 gardens, aquaria and cultural arts institutions that offer a wealth of
5 ways to engage children and adults and instill in them a lasting love of
6 learning.
7 The legislature finds that over 1,500 museums, historical societies,
8 zoos, botanical gardens, aquaria and cultural arts institutions in this
9 state now provide instruction to over six million children, and that
10 children in grades pre-kindergarten through twelve and adults enrolled
11 in continuing education programs should have broad and equal access to
12 such services.
13 The legislature further finds that community cultural arts insti-
14 tutions, in collaboration with teachers and schools, must design new and
15 innovative programs to engage learners in such pressing issues as
16 science, anthropology, history and arts literacy.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

LBD03063-02-5

1 It is the intent of the legislature that the state provide financial
2 assistance to cultural arts institutions serving under-resourced urban,
3 suburban or rural communities to expand educational services through
4 access to museum collections, scholarship and virtual learning and
5 extend their uniquely valuable educational resources to the children and
6 lifelong learners of the state.

7 § 2. Short title. This act shall be known and may be cited as the
8 "museum education act".

9 § 3. The arts and cultural affairs law is amended by adding a new
10 section 61.15 to read as follows:

11 § 61.15. Education grants for museums. 1. The commissioner of educa-
12 tion shall develop and implement, with consultation and input from
13 representatives from the museum and cultural institution community, a
14 museum and cultural organization education grant program, and shall
15 award, within the amounts appropriated from the general fund for such
16 purpose, competitive grants in accordance with this section for the
17 purpose of establishing or improving education programs in museums and
18 cultural organizations designed to improve student performance in public
19 and nonpublic elementary, middle and secondary schools. Such grants
20 shall be expended to support the production of curricula, acquisition of
21 specialized educational or interpretive skills, acquisition and imple-
22 mentation of technology, and preparation of specialized exhibition or
23 public programs that are tailored to elementary, middle and secondary
24 school students; the development and delivery of continuing education
25 programs; provision of student transportation; and other programs that
26 support the development and delivery of curriculum-based programs in
27 museums with collections.

28 2. As used in this section, "eligible institution" shall mean: (a) a
29 nonprofit institution chartered by the board of regents, or otherwise
30 incorporated as a museum, historical society, nature center, zoo, botan-
31 ical garden, arboretum, aquarium or other cultural education institu-
32 tion, or a privately or municipally operated institution that meets the
33 applicable registration standards established by the board of regents
34 for museums or historical societies with collections, and that is
35 located in a low-income urban, suburban or rural community or provides
36 educational services to students and adult learners from low-income
37 urban, suburban or rural communities; (b) a museum authorized by a
38 special charter from the legislature of this state and that is located
39 in a low-income urban, suburban or rural community or provides educa-
40 tional services to students and adult learners from low-income urban,
41 suburban or rural communities; or (c) a private not-for-profit community
42 based organization, including an incorporated institution the sole or
43 primary purpose of which is the support of museums, historic sites or
44 historical societies located in a low-income urban, suburban or rural
45 community or that provides educational services to students and adult
46 learners from low-income urban, suburban or rural communities; except
47 that institutions operated by state or federal government agencies shall
48 not be considered eligible under this section.

49 3. The governing body or officer of an eligible institution requesting
50 a grant pursuant to this section shall submit an application at such
51 time, and in such form and containing such information, as the commis-
52 sioner of education may require. Such commissioner shall establish the
53 criteria and standards by which applications for grants to be awarded
54 pursuant to this section will be evaluated and made to eligible insti-
55 tutions. The commissioner of education is authorized to promulgate regu-
56 lations for the development and submission of applications for cooper-

1 ative or collaborative grants, provided that a single institution serves
2 as the applicant for such a grant and for multi-year grants.

3 4. The commissioner of education shall award grants, subject to avail-
4 able appropriations, in an amount not to exceed the allowable costs of
5 the eligible institution as determined by such commissioner. Allowable
6 costs shall include, but need not be limited to, the reasonable cost of
7 salaries and fringe benefits, materials and equipment. The commissioner
8 of education shall allocate twenty-five percent of the amounts appropri-
9 ated for such grants to award to institutions with an operating budget
10 of between ten thousand dollars and one hundred fifty thousand dollars
11 per year, twenty-five percent of the amounts appropriated for such
12 grants to award to institutions with an operating budget of between one
13 hundred fifty thousand one dollars and five hundred thousand dollars per
14 year, twenty-five percent of the amounts appropriated for such grants to
15 award to institutions with an operating budget of between five hundred
16 thousand one dollars and one million dollars per year, and twenty-five
17 percent of the amounts appropriated for such grants to award to insti-
18 tutions with an operating budget in excess of one million dollars per
19 year. Any remaining funds which are not awarded due to a lack of eligi-
20 ble applicants may be subsequently awarded according to criteria as
21 determined by the commissioner of education, irrespective of operating
22 institution budget size.

23 5. On or before March fifteenth, two thousand twenty-eight and on or
24 before March fifteenth of each year thereafter, the commissioner of
25 education shall submit to the chairs of the senate finance and the
26 assembly ways and means committees, and the director of the budget, a
27 report detailing the implementation of the provisions of this section,
28 including the extent of participation by eligible institutions, the
29 relationship of the programs provided to school curricula, the number of
30 successful and unsuccessful applicants by size of institution, and the
31 geographic dispersion of funds and participating institutions.

32 § 4. This act shall take effect on the three hundred sixty-fifth day
33 after it shall have become a law. Effective immediately the addition,
34 amendment and/or repeal of any rule or regulation necessary for the
35 implementation of this act on its effective date are authorized to be
36 made and completed on or before such effective date.